

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 05/05/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L24-00731

CASE NAME: DISCOVER BANK VS. DAVID HART

*HEARING ON MOTION IN RE: TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT
PURSUANT TO STIPULATION

FILED BY: DISCOVER BANK

***TENTATIVE RULING**

Background

Plaintiff filed a motion to enter judgment pursuant to stipulation. The motion was served by mail to the address where Plaintiff had personally served the Defendant with a copy of the Complaint in this matter.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$1,925.61, less any credits for payments received, plus court costs of \$296.02.

Defendant made total payments in the amount of \$760; thus, the judgment amount should be

\$1,461.63.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$1,461.63.

Plaintiff to file order on Motion, as well as submit Judgment.

2. 9:00 AM CASE NUMBER: L24-02267

CASE NAME: CITIBANK, N.A. VS. KARLA GOMEZ

***HEARING ON MOTION IN RE: TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT
PURSUANT TO STIPULATION**

FILED BY: CITIBANK, N.A.

TENTATIVE RULING:

Plaintiff has filed a Motion to enter judgment pursuant to stipulation but has a notice problem. Notice of this Motion was provided to the Defendant by mail, apparently, but there is nothing to corroborate that this is a proper address for the Defendant. Defendant was never served with process and has not filed any pleadings with the court. Proper service of this Motion would require personal service or, if using mail, then an acknowledgment of receipt from Defendant.

Disposition

Motion continued to 7/28/26, 9 a.m.

Plaintiff to provide notice to Defendant of Motion and date of hearing.

3. 9:00 AM CASE NUMBER: L24-06130

**CASE NAME: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY VS. ROSENDO RAMIREZ
GARCIA**

***HEARING ON MOTION IN RE: FOR JUDGMENT ON THE PLEADINGS AND OF NONAPPEARANCE
FILED BY: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY**

TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings against Defendant Doroteo Ramirez. The motion was timely served by mail on Defendant. The Motion is unopposed.

Background

The cause of action is one of subrogation, where Plaintiff reimbursed its policy holder for an event in which Defendant is alleged to have negligently permitted another person driver her vehicle and cause damage to the policy holder.

On 9/16/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions ("Deemed Admitted Order"). All requests for admission, provided in the declaration filed 5/21/25, were deemed to be true by the court.

The court takes judicial notice of the Complaint, the Deemed Admitted Order, as well as the declaration filed by the Plaintiff on 5/21/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint involves a subrogation matter where the claim alleges that Defendant was negligent in allowing another individual to operate to her car, and that this individual's operation of the car caused damage to the policy holder.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of her negligence, and that this negligence was the proximate and but-for cause of the damages that amounted to \$2,220.32.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 ("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file Order.

4. 9:00 AM CASE NUMBER: L24-06199
CASE NAME: BANK OF AMERICA, N.A. VS. ALBERTO VAZQUEZ
***HEARING ON MOTION IN RE: NOTICE OF AND MOTION FOR ORDERSETTING ASIDE AND VACATING ITSPRIOR ORDER OF DISMISSAL AND FORENTRY OF JUDGMENT PURSUANT TO STIPULATION OF THE PARTIES**

FILED BY: BANK OF AMERICA, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was served with process via substitute service. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$12,410.34, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$4,700.

Costs are \$466.39, per stipulation, plus additional costs of \$450.11, that are itemized in the accompanying Declaration.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$8,626.84.

Plaintiff to file order on Motion, as well as submit Judgment.

**5. 9:00 AM CASE NUMBER: L25-01481
CASE NAME: LVNV FUNDING LLC VS. JACLYN ELLSWORTH
*HEARING ON MOTION IN RE: TO SET ASIDE JUDGMENT
FILED BY: ELLSWORTH, JACLYN
TENTATIVE RULING:**

Defendant filed this Motion to Set Aside Judgment under Section 473.5 of the CCP, contending that she did not receive actual notice.

Plaintiff filed a judgment in the matter on 12/9/25.

Defendant timely served the Motion on Plaintiff, and the Motion is unopposed.

Background

Plaintiff filed a proof of service of process, of which the court takes judicial notice, reflecting that a process server completed personal service on 4/13/25. The person who was served identified herself as Jaclyn Ellsworth, and the service took place at the same address the Defendant used on this Motion. The server described the individual as a white woman, 35-45 and of medium height, and with dyed hair.

Defendant, in her declaration claims he was never actually served with process, though she was home at the time of the purported service.

Analysis

Defendant seeks relief under Section 473.5 of the Code of Civil Procedure, which confers power on the court to set aside a default judgment when the defendant does not receive actual notice of the process; as well as Section 473(b) of the CCP, which provides the same authority in cases where a defendant acts or fails to act out of mistake, inadvertence, surprise or excusable neglect. When service is done by a registered process server, there is a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

In the instant matter, the court does not have enough information, from the written submissions alone, to render a decision. Thus, the court will require an evidentiary hearing.

Disposition

Parties to appear in court for evidentiary hearing on the issue of service of process.

6. 9:00 AM CASE NUMBER: L25-02037
CASE NAME: PORTFOLIO RECOVERY ASSOCIATES, LLC VS. SHAUN AVANT
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT AND DEFAULT JUDGMENT**
FILED BY: AVANT, SHAUN A
TENTATIVE RULING:

Defendant filed this Motion to Set Aside Judgment under Section 473.5 of the CCP, contending that he did not receive actual notice.

Plaintiff filed a judgment in the matter on 2/23/26.

Defendant timely served the Motion on Plaintiff, and the Motion is unopposed.

Background

Plaintiff filed a proof of service on 6/2/25, of which the court takes judicial notice, reflecting that a process server completed personal service on 5/31/25. The person who was served identified herself as Shaun A. Avant, and the service took place at the same address the Defendant used on this Motion. The server described the individual as a black male, middle aged and of medium height and weight. The service was done by a registered process server, which raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

Defendant, in his declaration claims he was never actually served with process, though he was home at the time of the purported service. He also cites a discrepancy between his actual appearance and the description offered by the server.

Analysis

Defendant seeks relief under Section 473.5 of the Code of Civil Procedure, which confers power on the court to set aside a default judgment when the defendant does not receive actual notice of the process; as well as Section 473(b) of the CCP, which provides the same authority in cases where a defendant acts or fails to act out of mistake, inadvertence, surprise or excusable neglect.

When service is done by a registered process server, there is a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

In the instant matter, the court does not have enough information, from the written submissions alone, to render a decision. Thus, the court will require an evidentiary hearing.

Disposition

Parties to appear in court for evidentiary hearing on the issue of service of process.

7. 9:00 AM CASE NUMBER: L25-05839

CASE NAME: MARINER FINANCE, LLC VS. LORETTA ROBERTSON

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO BE RELIEVED AS COUNSEL**

FILED BY: ROBERTSON, LORETTA R

TENTATIVE RULING:

Background

Counsel for Defendant has filed a Motion to be relieved as counsel, citing an inability of the client to pay counsel, as well as a breakdown in communication.

The Motion was served on Defendant as well as the Plaintiff.

The Motion is unopposed.

No trial date has been set.

Disposition

Motion to be relieved is granted.

Counsel for Defendant to file order.

8. 9:00 AM CASE NUMBER: L25-09990

CASE NAME: WELLS FARGO BANK, N.A. VS. NICHOLAS DELUCA

***HEARING ON MOTION FOR DISCOVERY FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED
FILED BY: WELLS FARGO BANK, N.A.**

TENTATIVE RULING:

Background

Plaintiff filed Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration and Memorandum.

Plaintiff attached the particular facts at issue in their Exhibit One - Request For Admissions Propounded On Defendant, Set One, ("Admissions") - to their Declaration.

Plaintiff attached a proof of service, indicating email service to Defendant's mailing address of record.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

Disposition

The court grants Plaintiff's Motion.

The Admissions at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

9. 9:00 AM CASE NUMBER: L25-12428

CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV

**HEARING ON DEMURRER TO: IN THE ALTERNATIVE MTC MEDIATION AND ARBITRATION WITH MTS
FILED BY: YADAV ENTERPRISES, INC.**

TENTATIVE RULING:

Defendant has filed a Motion requesting the court to compel arbitration, but has also, in the alternative, Demurred to the Complaint.

Defendant's request was timely noticed. It is unopposed.

Background

The instant matter stems from a dispute over legal fees, where Plaintiff had performed legal services for Defendant in the case of Helmsman Management Service versus Yadav Enterprises.

The crux of the lawsuit is that Plaintiff alleges that Defendant has breached the fee agreement.

Defendant, in their Motion, contends that the agreement calls for mediation, followed by arbitration, before any litigation in court.

Defendant, in the Declaration attached to the Motion, refers to emails they sent to Plaintiff, in which they expressed their intent to ask the court to compel mediation and arbitration.

The Fee Agreement is apparently reflected in Exhibit B to the Motion. Without listing the language explicitly, Paragraph 9 quite clearly calls for the parties to first attempt to resolve any fee disputes through mediation; if that proves unsuccessful, arbitration is the next step. There doesn't appear to be any term in the agreement that requires either party to formally request mediation of the other party to trigger the process.

Analysis

In the instant matter, the intent of the term of the agreement covering fee disputes is quite clear: Parties need to start with mediation.

The court does not feel that the Demurrer is ripe for decision at this point, so will not rule on it.

Disposition

Defense's Motion to compel the mediation and arbitration process is granted.

Defense to initiate that process.

This matter will be stayed until the mediation and arbitration process is exhausted.

The current CMC of 6/3/26, will remain, however, at which time the court will check on the progress of mediation and arbitration.

Defense to file Order.

**10. 9:00 AM CASE NUMBER: L25-12479
CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV
HEARING ON DEMURRER TO: OR IN THE ALTERNATIVE MTC MEDIATION AND ARBITRATION WITH
MTS
FILED BY: YADAV ENTERPRISES, INC.**

TENTATIVE RULING:

Defendant has filed a Motion requesting the court to compel arbitration, but has also, in the alternative, Demurred to the Complaint.

Defendant's request was timely noticed. It is unopposed.

Background

The instant matter stems from a dispute over legal fees, where Plaintiff had performed legal services for Defendant in the case of Irene Johnson versus Coral Reef Inn and Suites.

The crux of the lawsuit is that Plaintiff alleges that Defendant has breached the fee agreement.

Defendant, in their Motion, contends that the agreement calls for mediation, followed by arbitration, before any litigation in court.

Defendant, in the Declaration attached to the Motion, refers to emails they sent to Plaintiff, in which they expressed their intent to ask the court to compel mediation and arbitration.

The Fee Agreement is apparently reflected in Exhibit B to the Motion. Without listing the language explicitly, Paragraph 9 quite clearly calls for the parties to first attempt to resolve any fee disputes through mediation; if that proves unsuccessful, arbitration is the next step. There doesn't appear to be any term in the agreement that requires either party to formally request mediation of the other party to trigger the process.

Analysis

In the instant matter, the intent of the term of the agreement covering fee disputes is quite clear: Parties need to start with mediation.

The court does not feel that the Demurrer is ripe for decision at this point, so will not rule on it.

Disposition

Defense's Motion to compel the mediation and arbitration process is granted.

Defense to initiate that process.

This matter will be stayed until the mediation and arbitration process is exhausted.

The current CMC of 6/4/26, will remain, however, at which time the court will check on the progress of mediation and arbitration.

Defense to file Order.

11. 9:00 AM CASE NUMBER: L25-12481

CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV

HEARING ON DEMURRER TO: OR IN THE ALTERNATIVE MTC MEDIATION AND ARBITRATION WITH MTS

FILED BY: YADAV ENTERPRISES, INC.

TENTATIVE RULING:

Defendant has filed a Motion requesting the court to compel arbitration, but has also, in the alternative, Demurred to the Complaint.

Defendant's request was timely noticed. It is unopposed.

Background

The instant matter stems from a dispute over legal fees, where Plaintiff had performed legal services for Defendant in the case of Carey Thomas versus Yadav Enterprises.

The crux of the lawsuit is that Plaintiff alleges that Defendant has breached the fee agreement.

Defendant, in their Motion, contends that the agreement calls for mediation, followed by arbitration, before any litigation in court.

Defendant, in the Declaration attached to the Motion, refers to emails they sent to Plaintiff, in which they expressed their intent to ask the court to compel mediation and arbitration.

The Fee Agreement is apparently reflected in Exhibit B to the Motion. Without listing the language explicitly, Paragraph 9 quite clearly calls for the parties to first attempt to resolve any fee disputes through mediation; if that proves unsuccessful, arbitration is the next step. There doesn't appear to be any term in the agreement that requires either party to formally request mediation of the other

party to trigger the process.

Analysis

In the instant matter, the intent of the term of the agreement covering fee disputes is quite clear: Parties need to start with mediation.

The court does not feel that the Demurrer is ripe for decision at this point, so will not rule on it.

Disposition

Defense's Motion to compel the mediation and arbitration process is granted.

Defense to initiate that process.

This matter will be stayed until the mediation and arbitration process is exhausted.

The current CMC of 6/4/26, will remain, however, at which time the court will check on the progress of mediation and arbitration.

Defense to file Order.

12. 9:00 AM CASE NUMBER: L25-12484

CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV

HEARING ON DEMURRER TO: OR IN THE ALTERNATIVE MTC MEDIATION AND ARBITRATION WITH MTS

FILED BY: YADAV ENTERPRISES, INC.

TENTATIVE RULING:

Defendant has filed a Motion requesting the court to compel arbitration, but has also, in the alternative, Demurred to the Complaint.

Defendant's request was timely noticed. It is unopposed.

Background

The instant matter stems from a dispute over legal fees, where Plaintiff had performed legal services for Defendant in the case of Ramsey versus Central Coast Restaurants.

The crux of the lawsuit is that Plaintiff alleges that Defendant has breached the fee agreement.

Defendant, in their Motion, contends that the agreement calls for mediation, followed by arbitration, before any litigation in court.

Defendant, in the Declaration attached to the Motion, refers to emails they sent to Plaintiff, in which

they expressed their intent to ask the court to compel mediation and arbitration.

The Fee Agreement is apparently reflected in Exhibit B to the Motion. Without listing the language explicitly, Paragraph 9 quite clearly calls for the parties to first attempt to resolve any fee disputes through mediation; if that proves unsuccessful, arbitration is the next step. There doesn't appear to be any term in the agreement that requires either party to formally request mediation of the other party to trigger the process.

Analysis

In the instant matter, the intent of the term of the agreement covering fee disputes is quite clear: Parties need to start with mediation.

The court does not feel that the Demurrer is ripe for decision at this point, so will not rule on it.

Disposition

Defense's Motion to compel the mediation and arbitration process is granted.

Defense to initiate that process.

This matter will be stayed until the mediation and arbitration process is exhausted.

The current CMC of 6/4/26, will remain, however, at which time the court will check on the progress of mediation and arbitration.

Defense to file Order.

13. 9:00 AM CASE NUMBER: L26-00081

CASE NAME: CROWN ASSET MANAGEMENT LLC VS. DONPREYEL MARTIN

***HEARING ON MOTION IN RE: STAY OF PROCEEDINGS PENDING ARBITRATION**

FILED BY: MARTIN, DONPREYEL

TENTATIVE RULING:

Defendant has filed a motion to compel arbitration and stay proceedings. However, no there is no proof that the opposition has been given notice.

Disposition

This motion will be continued to 7/28/26, 9am.

Defendant to file Order of continuance.

Defendant to provide notice to Plaintiff.

14. 9:00 AM CASE NUMBER: MSL22-00197

CASE NAME: PORTFOLIO VS. CASTRO

*HEARING ON MOTION IN RE: SET ASIDE JUDGMENT

FILED BY: PORTFOLIO RECOVERYASSOCIATES,LLC

TENTATIVE RULING:

Plaintiff has filed a Motion to set aside judgment. Plaintiff has also requested that the case be dismissed without prejudice.

Plaintiff has properly noticed Defendant, and the Motion is unopposed.

Disposition

Motion to set aside judgment is granted.

Case will be dismissed.

Plaintiff to file Order.